

Rajendra Kumar Sharma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 June 2023 · 2023:AHC:129245-DB · Writ - C No. 20839 of 2023 · **Pending Paragraph 6.8 objection to be decided within three weeks**

HEADNOTE

Writ disposed of by a time-bound direction. After an earlier restoration writ was dismissed because objections under Paragraph 6.8 of the U.P. Electricity Supply Code, 2005 were an efficacious remedy, the objection filed on 24.3.2023 was left undecided. The Executive Engineer is directed to consider and decide it within three weeks. Restoration and the merits of the objection are not decided.

FACTUAL SUMMARY

The petitioner's stone crusher mill had lost its electricity supply. An earlier writ for restoration (Writ C No. 4285 of 2023) was dismissed on 17 February 2023 because objections under Paragraph 6.8 of the U.P. Electricity Supply Code, 2005 were an efficacious remedy, with liberty to seek reconnection on terms satisfactory to the respondents. Pursuant to that order he filed objections on 24 March 2023 before the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam, Karwi, Chitrakoot. No decision followed, so he sought a mandamus to decide them.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Time-bound decision of a pending Paragraph 6.8 objection

HOLDING

Where the consumer has filed an objection under Paragraph 6.8 of the U.P. Electricity Supply Code, 2005 and it remains undecided, a writ seeking only a mandamus to decide that objection is disposed of by directing the concerned authority to consider and decide it expeditiously, preferably within three weeks of filing a copy of the order. ¶ 4

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy A coordinate Bench had already treated Paragraph 6.8 objections as the efficacious remedy for restoration. This Court did not reopen that route or grant supply; it disposed of the writ by directing the authority to consider and decide the objection already filed on 24.3.2023 within three weeks. Lead authorities: *M/s Rajendra Kumar Sharma Stone Crusher, Gonda v. State of U.P., Writ C No. 4285 of 2023 (order dated 17.2.2023)*. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — RESTORATION OF SUPPLY TO THE STONE CRUSHER AND THE MERITS OF THE OBJECTION DATED 24.3.2023

Left to the concerned authority, which was directed only to consider and decide the pending objection. ¶ 2-4

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Rajendra Kumar Sharma Stone Crusher, Gonda v. State of U.P.</i> Writ C No. 4285 of 2023, order dated 17.2.2023			3	followed

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.